



Policy 636 – Participant Notification: Ineligibility and Termination from WIC

Revised July 01, 2026

Policy

Local programs shall notify WIC applicants and participants and inform them of ineligible status or termination from the WIC program.

Purpose

To ensure that WIC applicants and participants are fully informed of their program status within timeline designated by United States Department of Agriculture (USDA) regulation. USDA timelines are measured in calendar days therefore, any reference in this policy to 15, 30, or 60 days refers to calendar days.

Relevant Regulations

7CFR §246.7(h)—Mandatory and Optional Mid-Certification Actions

7CFR §246.7(i)—Certification Forms

7CFR §246.7(j)—Notification of Participant Rights and Responsibilities

7CFR §246.9—Fair Hearing Procedures for Participants

OAR 333-053-0110—Administrative Review

ORS 183—Administrative Procedures Act

Oregon WIC PPM References

- ◆ [458—Appeals Process for Participants](#)
- ◆ [475—Waiting List](#)
- ◆ [590—Program Integrity: Participant Violations](#)
- ◆ [610—Required Proofs: Identity, Residency, Income](#)
- ◆ [635—Participant Notification: Eligibility, Rights and Responsibilities](#)

Definitions

Applicant: A WIC eligible individual who applies or re-applies for WIC services for themselves and/or on behalf of eligible infants and children.

Change in your WIC benefits: The “participant friendly” word for termination. Termination notices are called Change in Your WIC Benefits.

Electronic Benefit Account (EBA): An account established for each WIC family (including foster families) administered by Oregon’s banking contractor. Accounts are identified by the WIC family ID number assigned to that family. Food benefits for all participants in the family are aggregated into a single account.

Participant: An individual who receives supplemental food benefits, an infant who does not receive supplemental foods but whose breastfeeding parent receives supplemental food benefits, or breastfeeding parents who do not receive supplemental food benefits but whose infants receive supplemental food benefits.

Termination: Termination from the WIC Program occurs when a participant’s file is closed and benefits cease for any reason including, but not limited to, not

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meeting eligibility requirements, no longer breastfeeding, transferring out of state, etc.

Procedure

1. Participant notice at least 15 days prior to certification end date

- 1.1 Notify the participant or caretaker at least 15 days before the end of their certification period that their certification for the program is about to expire.
 - 1.1.1 Participant's first notification is on the ["Rights and Responsibilities," form 57-630](#) explaining that failure to keep recertification appointments may delay or stop WIC services.
 - 1.1.2 Written appointment reminder notices serve as the notification of the approaching expiration of certification and must be received by the participant at least 15 days before their certification period ends.

2. Documentation of ineligibility

- 2.1 When local program staff determine that an applicant is not eligible for WIC during the certification, give the applicant written notification. Notification may be provided as a physical copy in person or via mail, or electronically via text or email. Notification must include the reasons for ineligibility and the applicant's rights to a fair hearing. Giving the applicant a copy of ["Notice of WIC Ineligibility," form 57-607](#) meets this requirement.
 - 2.1.1 Document the reasons for ineligibility and that notification was given to the applicant in the participant's record.

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- 2.1.1.1 If notification is manually issued, the date of notification and reason for ineligibility must be documented in the participant's record.
- 2.1.2 For applicants who cannot be served because the local program is operating at capacity, provide information about other potential sources of food assistance or put them on the waiting list. See Policy ♦ [475—Waiting List](#).
- 2.1.3 Applicants with incomplete certification records in the WIC data system will be considered ineligible and the data system will produce an ineligibility letter at the end of the month if one was not printed initially. These must be sent to the participant within 30 days.

3. No ineligibility notice

- 3.1 Local programs do not need to give a written notice of ineligibility to individuals who request services and preliminary screening shows they do not meet income, residence, or categorical eligibility requirements.

4. Termination from the WIC program

- 4.1 Participants terminated from the program must be given written notice at least 15 days prior to termination. The notification must include the reason for the termination and the participant's right to a fair hearing. Giving the participant the [“Change in Your WIC Benefits,” form 57-608](#) fulfills this requirement. The notification can be provided in person, via mail, email or text.
 - 4.1.1 The “Change in Your WIC Benefits” letter is generated by the WIC data system. The language is based on information entered

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in client demographics. Participants may be terminated from the WIC program for the following reasons:

- 4.1.1.1 No longer eligible in their certification category.
Example: A child turns 5 years old; an adult is six months postpartum and not breastfeeding; a breastfeeding adult is one year postpartum.
- 4.1.1.2 No longer meets eligibility criteria: e.g. income above WIC income eligibility guidelines or no longer lives in the state of Oregon. **Example:** Three-year-old Joe Smith is brought in for a recertification visit, where it is determined he is no longer income eligible. His caregiver will be given a “Change in Your WIC Benefits” letter. Joe is eligible to receive benefits in the month his certification ends.
- 4.1.1.3 Incomplete documentation: e.g. did not bring in proof of residence, income, or identity; incomplete certification.
- 4.1.1.4 Insufficient funds to serve participants at that priority level and local program is not serving that priority.
- 4.1.1.5 Did not keep scheduled recertification appointments.
- 4.1.1.6 Participant violation (refer to ♦ [590—Program Integrity: Participant Violations](#), for examples of participant abuse and further guidelines on when this may occur).
- 4.1.1.7 Voluntary removal from the program if the participant chooses not to sign the [“Participant Signature Form,” form 57-629](#) or decides to discontinue participation in the WIC program. **Note:** Participants must sign the

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“Participant Signature Form” to receive WIC benefits, since the use of the WIC data system is essential to issuance of WIC benefits and the system is integrated with other programs.

5. No termination notice

5.1 Participants do not need to receive written notice of termination when:

- Participant does not receive benefits for 6 consecutive months and the participant is automatically terminated by the WIC data system;
- Participant has moved out of state; or
- Participant does not have a forwarding address.

Documentation

5.2 Select a termination reason in the WIC data system. The system will follow prescribed proration rules, generate the termination notice and save changes in the participant’s record.

Food Benefits

5.3 When a participant is terminated from the program, in many cases any food benefits remaining in their Electronic Benefit Account (EBA) for the current month will be retained for them to redeem. The current month’s benefits are removed in the following situations:

- Custody change
- Deceased
- Dual participation

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- Abuse of the program Family is not issued benefits for 6 consecutive months
- Food benefits issued in the future will be removed from their EBA for all termination reasons.

6. Mid-certification eligibility assessment

6.1 The WIC program does not routinely conduct mid-certification eligibility assessments. However, local program staff will review eligibility if a participant notifies the program that there has been a change in income or residence. See ♦ [615—Income Eligibility: Change in Income](#) for more information. **Example-Income change:** Anna Norris calls her local WIC clinic to report she got a new job and is making considerably more money now. The clinic would determine if Ms. Norris is still income-eligible. If she were no longer eligible, she and other participating household members would be terminated from WIC, with appropriate notice (see ¶2.0 above).

7. Data system produced termination and ineligibility notices

7.1 The WIC data system will review terminated participant records weekly to identify those without a notification date and will batch produce termination notices for those participants. Participants must be notified 15 days prior to the end of their certification or termination.

7.1.1 Participants who will be categorically ineligible will have ineligibility notices produced one month prior to their term date. Notices must be printed and mailed within the first 15 days of each month to meet the 15 days prior to certification end date notification requirement. They are identified as "Change in WIC Benefits" notices in the WIC data system.

8. Appeal/Fair hearing request

- 8.1 An appeal request is the same as a fair hearing request. Inform the applicants and participants that they have the right to appeal the decision of ineligibility or termination by contacting the state WIC program using the information listed in their notice. Appeals must be requested within 60 days from the date of the notice of ineligibility or termination. Refer to ♦ [458—Appeals Process for Participants](#) for more information.

9. Record review for ineligible applicants or participants

- 9.1 If a participant is found ineligible to receive program benefits or is no longer eligible for the program, they may make a written or verbal request to the local WIC Coordinator for review of the decision. Refer to ♦ [458—Appeals Process for Participants](#) for more information.

Policy History

Policy History Table

Date	Major Revision, Minor Revision, or Reviewed
10/2/2019	Minor Revision
07/1/2026	Minor Revision

The date at the top of the policy is the date of the most recent release. Policies become effective on the release date. Policy changes become compliance findings 6 months from the release date.

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Major Revision: Policies with content changes that impact local agency functions. Please review all policies with major revisions. The Food and Nutrition Service (FNS) reviewed and approved these changes.

Minor Revision: Changes in policy that have small impacts on local agency functions. Minor edits, grammatical updates, clarifications, and/or formatting changes have occurred in these policies.

Reviewed: The policy was checked for accuracy. Minor formatting changes may have been made.

Date of Origin: Date policy was initially released

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